

22STCV20298 22STCV20298

County: los-angeles

Division: Civil Law and Motion

Department: N

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Case Number: 22STCV20298 Hearing Date: August 24, 2026 Dept: N

TENTATIVE RULING

Plaintiff Alec Enciso's Motion for New Trial is DENIED.

Plaintiff Alec Enciso to give notice.

REASONING

This action went to trial on March 9, 2026, and on April 1, 2026, the jury concluded that

Defendant Michelle Gonzalez ("Defendant") was not negligent. On June 4, 2026, the Court

entered a judgment in Defendant's favor; on July 13, 2026, Plaintiff Alec Enciso ("Plaintiff")

filed a notice of intent to move for new trial; and Plaintiff's supporting memorandum of points

and authorities was filed on July 23, 2026. Plaintiff asserts irregularity in the proceedings,

misconduct of the jury, accident or surprise, insufficiency of the evidence to justify the verdict,

and error in law.

Code of Civil Procedure section 657 sets forth the grounds upon which a verdict may be vacated,

in whole or in part, and a new or further trial granted on all or part of the issues. "The

determination of a motion for a new trial rests so completely within the court's discretion that its

action will not be disturbed unless a manifest and unmistakable abuse of discretion clearly appears.” (Jiminez v. Sears, Roebuck & Co. (1971) 4 Cal.3d 379, 387.)

In this motion, Plaintiff specifically takes issue with Defendant’s liability expert Andrew Donaldson’s expert opinion that Plaintiff was traveling 25 to 30 miles per hour, after all other witnesses and reconstructionists had assumed that Plaintiff was traveling 15 miles per hour. However, the expert did not actually opine that Plaintiff was traveling at that speed; he simply responded that Plaintiff would need to be traveling at that speed to need a 2.9 PRT. As to the jury’s discomfort with Plaintiff’s counsel’s improper commentary, there is no evidence that this discomfort then caused the jury to engage in any misconduct. The inclusion of certain jury instructions was harmless because testimony of practices when driving are admissible, and Plaintiff has failed to show misconduct by defense counsel that would require a new trial where the Court sustained objections. Moreover, the time spent deliberating does not show that misconduct occurred, as a jury is not required to deliberate for a certain amount of time. Put simply, Plaintiff is seeking a second bite at the proverbial apple in this motion, and he has failed to provide a basis for the Court to vacate the jury’s findings. Accordingly, Plaintiff Alec Enciso’s Motion for New Trial is DENIED.

Evidentiary Objections

Defendant objects to the declaration of Michelle Schonbrunn. Defendant’s objection is SUSTAINED.

Plaintiff objects to certain statements within the declaration of Ashley Morris. The Court

declines to rule on the objections, as the evidence was not material to the Court's ruling herein.